

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 21-02

**YSN IMPORTS INC. d/b/a FLAME KING,
Complainant,**

v.

**FEIGE “PEGGY” OBERLANDER, U SHIPPERS GROUP INC., U SHIPPERS GROUP
MANAGEMENT CO., INC.,
Respondents.**

RESPONDENTS’ MOTION TO FILE EXPERT REPORT UNDER SEAL

Feige “Peggy” Oberlander, U Shippers Group Inc., and U Shippers Group Management Co. Inc. (collectively “Respondents”) move for permission to file the attached Expert Report under Seal. The relief is required because on January 6, 2022, approximately two weeks after all fact discovery was to be completed and one day before Expert Reports were due, the Complainant, YSN Imports Inc. (“YSN”) moved to extend the deadline for Expert Reports from January 7, 2022 until February 11, 2022. The parties conferred regarding this issue, but Complainants refused to consent to the relief sought. The Respondents submit that there is no legitimate basis for the extension and the Respondents intend to timely file an opposition to same.¹ The Respondents are also prepared to fully comply with the existing deadline for submission of Expert Reports. In the event the Presiding Judge were to grant YSN’s belated request for an extension of time for such submissions, the Respondent would be prejudiced by

¹ The Respondents also intend to timely oppose YSN’s Motion to Compel which was filed two weeks after the deadline for the completion of fact discovery.

disclosing their Expert Report to YSN a month before YSN had to do so. Accordingly, the Respondents seek permission to file the attached Expert Report under Seal so as prevent its premature disclosure to YSN.

Dated: January 7, 2022

Respectfully submitted,

/s/ Brendan Collins

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*Counsel for Respondents Feige "Peggy"
Oberlander, U Shippers Group Inc., and U
Shippers Group Management Co., Inc.*

CERTIFICATE OF SERVICE

I hereby certify that that on this 7th day of January, 2022, I have served the foregoing document upon all parties of record by electronically mailing a copy to each such person.

/s/Brendan Collins

Brendan Collins